

25STCV26001 25STCV26001

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Case Number: 25STCV26001 Hearing Date: August 11, 2026 Dept: 408

Plaintiff Elayna A. Frogier's Motion to Compel Initial Disclosures and Request for Sanctions as to Defendant FCA US, LLC is DENIED.

I. BACKGROUND

On September 4, 2025, Plaintiff Elayna A. Frogier ("Plaintiff") filed a complaint against Defendants FCA US, LLC and Stead Motors Inc. ("Defendants") alleging causes of action for:

1. Violation of Subdivision (d) of Civil Code Section 1793.2;
2. Violation of Subdivision (b) of Civil Code Section 1793.2;
3. Violation of Subdivision (a)(3) of Civil Code Section 1793.2;
4. Breach of the Implied Warranty of Merchantability;
5. Negligent Repair; and
6. Fraudulent Inducement Concealment.

On February 9, 2026, the court overruled Defendants' Demurrer to Plaintiff's complaint as to the fourth and sixth causes of action, and denied Defendants' Motion to Strike portions of Plaintiff's complaint.

On February 18, 2026, Defendant FCA US, LLC ("FCA") filed an answer to Plaintiff's complaint.

On June 1, 2026, Plaintiff filed this Motion to Compel Initial Disclosures as to FCA. On July 28, 2026, FCA filed an opposition. On July 30, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

In civil actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

"The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

- (1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.
- (2) Any warranties issued in conjunction with the sale of the motor vehicle.
- (3) Sample brochures published for the motor vehicle.
- (4) The motor vehicle's original invoice, if any, to the selling dealer.
- (5) Sales or lease agreement, if the manufacturer is in possession.
- (6) Motor vehicle information reports, including build documentation, component information, and delivery details.
- (7) Entire warranty transaction history for the motor vehicle.
- (8) Listing of required field actions applicable to the motor vehicle.
- (9) Published technical service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.
- (10) Published information service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.
- (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.
- (12) Warranty policies and procedure manuals.
- (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.
- (14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.
- (15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Code Civ. Proc., § 871.26, subd. (h).)

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: "A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26(j)(1).)

III. DISCUSSION

Plaintiff seeks to compel initial disclosures from FCA pursuant Code of Civil Procedure section 871.26(h), arguing that FCA filed its Demurrer on November 5, 2025, and the 60-day deadline for initial disclosures expired on January 4, 2026. (Motion, at pp. 5-6.) On May 21, 2026, Plaintiff's counsel sent a meet-and-confer letter to FCA's counsel identifying deficiencies in the information provided. (Ibid.) Plaintiff argues that FCA failed to cure the deficiencies or provide verified responses, and therefore FCA has failed to comply with its statutory obligations under Section 871.26. (Id., at p. 6.) Specifically, Plaintiff argues that FCA did not provide all documents required under Section 871.26, subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). (Id., at p. 2.)

In opposition, FCA provides that on January 2, 2026, FCA served its initial disclosures in compliance with Section 871.26(h). (Opp., at pp. 3-4; Tremonti Decl., ¶ 2.) FCA argues verified written responses are not required under Section 871.26. (Opp., at pp. 4-5.) FCA further argues that Section 871.26 requires limited initial disclosures, and Plaintiff's requests go beyond the scope of the statute. (Id., at pp. 5-7.) Accordingly, FCA contends that it has produced the required documents, rendering Plaintiff's motion moot. (Id., at p. 4.)

The court finds that there is no indication that FCA did not comply with its statutory obligation to propound initial disclosures. The information Plaintiff seeks goes beyond the scope of Section 871.26(h) and may be requested through formal discovery procedures, rather than through a motion to compel initial disclosures. There is also no requirement under Section 871.26 that a manufacturer serve verified written responses in conjunction with its initial disclosures. Accordingly, the motion and request for sanctions are denied.

IV. CONCLUSION

Plaintiff Elayna A. Frogier's Motion to Compel Initial Disclosures and Request for Sanctions as to Defendant FCA US, LLC is DENIED.

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